

#	Case Name	Tentative
50.	Williams v. Sevilla Homeowners Association 2021-01183871	The motion by Steven M. Levine and the Judge Law Firm, ALC, to be relieved as counsel for plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams is GRANTED, effective upon filing proof of service of the signed order on the clients. (Cal. Rules of Court, Rule 3.1362 [authorizing motion].) Moving counsel are ordered to comply with the Rules of Professional Conduct concerning transitioning information and files to former clients. Given the upcoming Phase 2 trial date, moving parties are ordered to return files to the client no later than August 21, 2026. (CA Rules of Prof. Conduct, Rule 1.16(e)(1) ["Upon the termination of a representation ... subject to any applicable protective order, non-disclosure agreement, statute or regulation, the lawyer promptly shall release to the client, at the request of the client, all client materials and property"].) The court sets a hearing for September 14, 2026 at 2:00 p.m. in Department C28 to determine how the Phase I rulings will be addressed at the next phase of the trial. The parties are allowed to file additional briefing as follows: Defendants' further brief (limited to 10 pages) shall be filed on or before August 28, 2026. Plaintiffs' further brief (limited to 10 pages) shall be filed September 4, 2026. No further briefing on this issue is permitted. Moving counsel shall give notice of this ruling. #51 Attorneys Kristen Tojo, Nicol Hajjar and Wilshire Law Firm's motion to be relieved as counsel for plaintiff Carla Luna is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order on plaintiff. Moving counsel shall give notice of this ruling.
51.	Luna v. Amphitrite Hotel, LLC 2025-01495217	Attorneys Kristen Tojo, Nicol Hajjar and Wilshire Law Firm's motion to be relieved as counsel for plaintiff Carla Luna is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order on plaintiff. Moving counsel shall give notice of this ruling.
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54.	Jones v. Myers 2026-015404467	The demurrer by defendant Susanne Myre (erroneously sued as Susanne Myers) to plaintiff Desiree Jones' Complaint is OVERRULED as to the 1st cause of action for defamation, and on grounds of uncertainty, and SUSTAINED, with limited leave to amend, as to the 3rd cause of action for "Interference with Legal Process and Obstruction of Mail." <u>Uncertainty.</u> Moving party cites Code Civ. Proc., § 430.10, subd. (f), in the notice of demurrer, but the moving papers do not address this ground. The Complaint is not so uncertain that defendant cannot determine the nature of the claims alleged, or how to respond. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) <u>1st cause of action: defamation.</u> This cause of action alleges sufficient facts. (Code Civ. Proc., § 430.10, subd. (e); <i>Taus v. Loftus</i> (2007) 40 Cal.4th 683, 720 [elements]; Complaint at 1:25-2:2 ["On or about December 2nd 2020, Defendant made false, unprivileged statements to the HOA Board and neighbors, including ... [t]hat Plaintiff committed 'mortgage fraud,'" which statements "are defamatory per se as they falsely charge Plaintiff with a crime and tend directly to injure Plaintiff in her profession"].) While moving party contends this action is time-barred, the demurrer fails to address the delayed discovery allegations, which appear sufficient. (Complaint at 3:16-27; <i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808 ["In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.'"]) Whether or not plaintiff in fact committed mortgage fraud may be proven true or false, and thus is not inactionable opinion, as argued by moving party. (See <i>Gallagher v. Connell</i> (2004) 123 Cal.App.4th 1260, 1271 ["The essential difference between a statement of fact and a statement of opinion is that a statement of fact implies a provably false factual assertion while a statement of opinion does not"].) <u>3rd cause of action: "Interference with Legal Process and Obstruction of Mail."</u>

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		This cause of action fails to allege sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) There is no private right of action for violation of 18 U.S.C. § 1701. (<i>Woods v. McGuire</i> (6th Cir. 1992) 954 F.2d 388, 391.) Limited leave to amend is granted, to allege some other common law tort, if available. (See Opposition at 2:24-3:5.) The court observes that the facts alleged could potentially support claims for some other common law tort. (See <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer if it states a cause of action on any theory].) However, as currently alleged, there are insufficient facts pled to show the nature of the tort, and how plaintiff was damaged by defendant's conduct. Plaintiff shall file a First Amended Complaint, if at all, within 15 days. The case management conference is continued to February 1, 2027 at 9:00 a.m. in Department C28. Moving party shall give notice of this ruling.
55.	Rume Medical Group, Inc. v. Aetna Health of California, Inc. 2026-01550393	Defendants Aetna Health of California, Inc.; Aetna Life Insurance Co.; Aetna Better Health of California, Inc.; Aetna Health and Life Insurance Co.'s demurrer to Plaintiff Rume Medical Group, Inc.'s Complaint is SUSTAINED WITHOUT LEAVE TO AMEND as to Cause of Action 9 and otherwise OVERRULED. (Code Civ. Proc. §430.10, subd. (e).) Defendants shall file an Answer to the Complaint within 20 days of this ruling. <u>General Legal Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of